Smt Iravva K Purantar vs S Venkatesh on 21 November, 2023

Author: S.R.Krishna Kumar

Bench: S.R.Krishna Kumar

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 21ST DAY OF NOVEMBER, 2023

BEFORE
THE HON'BLE MR JUSTICE S.R.KRISHNA KUMAR
REGULAR FIRST APPEAL NO. 172 OF 2018 (SP)

BETWEEN:

SMT. IRAVVA K PURANTAR,
W/O SRI. T. NAGAPPA,
AGED ABOUT 70 YEARS,
RESIDING AT 134, NAGANANDA NILAYA,
16TH CROSS, 7TH MAIN,
4TH PHASE, J. P. NAGAR,
BENGALURU - 560 078.

...APPELLANT

(BY SRI. SHARATH N, ADVOCATE FOR
SRI. SHIVA KUMAR, ADVOCATE AND
SRI. VEDAVASYA RAO R.S, ADVOCATE)

AND:

1. S. VENKATESH,
S/O SRI. SURYANARAYANA SHASTRY,
AGED ABOUT 54 YEARS,
RESIDING AT JARAGANAHALLI,
J.P.NAGAR, BENGALURU - 560 078.

Digitally signed by VANDANA S Location: HIGH COURT OF KARNATAKA

2. THE SECRETARY,
KENDRA UPADYAYARA SANGHA (REGD.),
NO.24, SUBBARAMA CHETTY ROAD,
BASAVANAGUDI, BENGALURU - 560 004.

...RESPONDENTS

(BY SRI. JANARDHANA G.N, ADVOCATE FOR R1;
SRI. K.P. BHUVAN, ADVOCATE FOR R2)

THIS RFA IS FILED UNDER SEC.96 READ WITH ORDER 41 RULE 1 OF THE CPC., AGAINST THE JUDGMENT AND DECREE DATED 15.12.2015 PASSED IN OS NO.3810/2010 ON THE FILE OF THE XVIII ADDL.CITY CIVIL

JUDGE AT BENGALURU CITY [CCH NO.10] DECREEING THE SUIT FOR SPECIFIC PERFORMANCE.

THIS APPEAL, COMING ON FOR ORDERS, THIS DAY, THE COURT DELIVERED THE FOLLOWING:

JUDGMENT

This appeal is directed against the impugned judgment and decree dated 15.12.2015 passed in O.S.No.3810/2010 by the XVIII Additional City Civil Judge, Bengaluru City, whereby the suit filed by respondent No.1/plaintiff against respondent No.2/defendant for specific performance of lease-cum-sale agreement dated 10.10.1986 in relation to the suit schedule immovable property was decreed by the trial Court in favour of respondent No.1/plaintiff against the respondent No.2/defendant.

2. Heard the arguments on both sides. The material on record discloses that respondent No.1/plaintiff instituted the aforesaid suit for specific performance and other reliefs against the respondent No.2/defendant. In the said suit, respondent No.1/plaintiff specifically contended that respondent No.2/Sangha had executed lease-cum-sale agreement dated 10.10.1986 and issued a possession certificate dated 18.12.1986 and had put the plaintiff in possession and enjoyment of the suit schedule property.

NC: 2023:KHC:41743 It was contended that despite execution of the aforesaid document, respondent No.2-Sangha was attempting to alienate the suit schedule property in favour of third parties and as such, respondent No.1/plaintiff had instituted the said suit for specific performance and other reliefs.

3. The respondent No.2/defendant filed his written statement inter alia disputing and denying the various claims and contentions urged by the plaintiff. The defendant specifically contended that plaintiff was an utter stranger and not a member of the defendant/Sangha. It was also contended that pursuant to formation of a layout in Sy.Nos.45 and 47 of Jakkasandra Village, Begur Hobli, Madivala I Stage, Bengaluru South Taluk, respondent No.2/Sangha had allotted site No.543 in favour of the appellant herein vide registered lease-cum-sale agreement dated 17.09.1987 and ever since appellant was in possession and enjoyment of the suit schedule property. Under these circumstances, respondent No.2/Sangha sought for dismissal of the suit.

4. Based on the aforesaid pleadings, the trial Court framed the following issues.

NC: 2023:KHC:41743 "1) Whether the plaintiff proves that defendant feet as per sale consideration receipt dated 02.10.1985 amounting to Rs.24, 026/- and also got executed lease cum sale agreement dated 10.10.1986 and has agreed to executed registered sale deed within 10 years from the said date?

2) Whether the defendant proves that plaintiff is not the member of defendant's sangha and there is no valid sale agreement and plaintiff is a stranger to the sangha?

3) Whether the defendant proves that sites were allotted to its member on lottery basis and site No.543 was allotted to Smt.I.K.Puranther under registered lease cum sale agreement dated 17.09.1987?

4) Whether the defendant proves that plaintiff's cause of action is imaginary?

5) Whether the defendant proves that court fee paid is insufficient?

6) Whether the defendant proves that plaintiff has created forged document and has filed this suit?

7) Whether the plaintiff is entitled for the relief of specific performance of contract?

8) What decree or order?"

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5. A perusal of the material on record including the impugned judgment and decree will indicate that the plaintiff examined his GPA holder as PW.1 and marked Exs.P1 and P4 on his side. However, the defendant/Sangha neither cross examined PW.1 nor adduced any oral or documentary evidence in support of his defence. Under these circumstances, having regard to the uncontroverted and unchallenged evidence of the plaintiff, the trial Court proceeded to decree the suit in his favour, by passing the impugned judgment and decree, which is assailed in the present appeal.

6. A perusal of the memorandum of the appeal and the application filed on behalf of the appellant will indicate that appellant has alleged that defendant-Sangha had executed a lease-cum-sale agreement dated 17.09.1987 in his favour as contended in the written statement. In this context, it is relevant to state that appellant has filed an application I.A.No.5/2018 for additional documents under Order 41 Rule 27 producing the following documents:

"(1) Copy of the registered Lease-Cum-Sale Agreement dated 17.09.1987.

NC: 2023:KHC:41743 (2) Copy of the Possession Certificate dated 17.03.1988.

(3) Copy of the Sale Deed dated 19.03.2012 (4) Copy of the Khatha Certificate and Khata Extract.

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(5)    Copy    of      the    summons      and    plaint    in

(6)    Copy of the plaint in O.S.No.3810/2010.
(7)    Copy of the written statement of 2nd respondent
       in O.S.No.3810/2010. "
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7. A perusal of the aforesaid documents comprising of the registered lease-cum-sale agreement dated 17.09.1987, possession certificate dated 17.03.1988, sale deed dated 19.03.2012, katha certificate, katha extract and other documents will indicate that the said documents are relevant and necessary for adjudication of the present appeal particularly, in the light of the specific contention urged on behalf of the defendant/Sanga in the suit that it had alienated the suit schedule property in favour of the appellant herein as could be seen from the written statement filed on behalf of the defendant/Sangha. Under these circumstances, I am of the considered opinion, that I.A.No.5/2018 filed for producing additional documents, deserves to be allowed and documents produced along with the same, deserves to be received on record.

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8. As stated supra, the appellant herein who claimed through and under the defendant/Sangha was not arrayed as a party to the suit. However, in the light of the specific contention of the defendant/Sangha that it had alienated the suit schedule property in favour of the appellant herein and on the ground that her alleged right, title, interest and possession over the suit schedule property would be affected by the impugned judgment and decree, therefore, the appellant has preferred the present appeal along with I.A.No.2/2018 for permission to file the appeal. While dealing with the applications, I.A.No.5/2018 for additional documents, I have already come to the conclusion is that the said documents are relevant and necessary for the purpose of adjudication of the issues in controversy between the parties, particularly, in the light of the specific contention of the appellant and the defendant/Sanga that the suit schedule property was alienated in favour of the appellant prior to institution of the suit. Under these circumstances, I am of the view that an opportunity be provided in favour of the appellant to prosecute the present appeal and accordingly I.A.No.2/2018 filed by the appellant is hereby allowed.

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9. I.A.No.1/2018 is filed by the appellant seeking condonation of the delay of 677 days in filing the appeal. In this regard, it is to be stated that pursuant to allowing I.A.No.5/2018 and I.A.No.2/2018 and providing an opportunity in favour of the appellant to prosecute the present appeal, I am of the considered opinion that delay on the part of the appellant who was not a party to the suit was due to bonafide reasons and unavoidable circumstances, and sufficient cause, since she had no knowledge about the pendency of the suit particularly when the lease-cum- sale agreement dated 10.10.1986 sought to be enforced by the plaintiff in the suit was an unregistered agreement, whereas lease-

cum-sale agreement executed by the defendant/Sangha in favour of the appellant on 17.09.1987 was a registered document. Under these circumstances, being satisfied that the delay in preferring the present appeal, has been satisfactorily explained. I.A.No.1/2018 is hereby allowed and the delay in preferring the appeal is hereby condoned.

10. Insofar as, I.A.No.3/2018 is filed by the appellant seeking impleadment as an additional defendant to the suit is concerned, as stated supra, despite the appellant having obtained NC: 2023:KHC:41743 registered lease-cum-sale agreement on 17.09.1987 prior to the institution of the suit in the year 2010, the appellant was not made party to the suit. A perusal of the said documents, in favour of the appellant will indicate that she has putforth claim in respect of the very same suit schedule property, which was subject matter of the suit and which culminated in the impugned judgment and decree. While it is true that in a suit for specific performance, a non-party to the contract would ordinarily not be construed or treated as a proper and necessary party, in the light of the specific assertion on the part of the Sangha in the written statement, that the suit was liable to be dismissed in view of execution of registered lease-cum- sale agreement dated 17.09.1987 in favour of the appellant, prior to the institution of the suit and since defendant/Sangha did not exercise due diligence and did not cross-examine PW.1 or adduced any oral or documentary evidence, on his behalf, it would be necessary for the appellant to take suitable steps to safe guard her alleged right, title, interest and possession of the suit schedule property by getting herself impleaded as additional defendant in the suit. Under these circumstances, I am of the view that in the peculiar/special facts and circumstances of the instant case, the appellant is both proper and necessary party to the suit and is

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NC: 2023:KHC:41743 entitled to be impleaded as an additional defendant No.2 in the suit. Accordingly, I.A.No.3/2018 is allowed and appellant is permitted to be impleaded as additional defendant No.2 in the suit.

11. The next question that arise for consideration is the procedure to be followed for the purpose of disposal of the appeal as contemplated under Order 41 Rule 28 of the Civil Procedure Code, 1908. While dealing with the applications, I.A.No.1/2018, 2/2018, 3/2018 and 5/2018, I have already come to the conclusion that the appellant is both proper and necessary party to the suit and documents produced along with I.A.No.5/2018 are relevant and necessary for the purpose of adjudication of the issues in controversy between the parties. As stated earlier, the defendant/Sangha neither cross examined PW.1 nor adduced any oral or documentary evidence on his behalf. Further upon impleadment, an opportunity would have to be provided in favour of the appellant to file her written statement as defendant No.2 and contest the suit on merits. Under these circumstances, I am of the view that the impugned judgment and decree passed by the trial Court deserves to set aside and the matter be remitted back to the

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NC: 2023:KHC:41743 trial Court for reconsideration afresh in accordance with law. In the result, I pass the following:

ORDER I. Appeal is hereby allowed.

II. Impugned judgment and decree dated 15.12.2015 is hereby set aside. III. I.A.No.3/2018 filed by the appellant is allowed and appellant is directed to be impleaded as additional defendant No.2 to the suit along with defendant No.1/Sangha. IV. I.A.No.5/2018 filed for producing additional documents is allowed and the documents produced by the appellant are received on record.

V. Registry is directed to transmit I.A.No.5/2018 along with documents to the trial Court for reconsideration afresh in accordance with law. VI. The entire matter is also remitted back to the trial Court for reconsideration afresh in accordance with law.

VII. Liberty is reserved in favor of the appellant/defendant No.2 to file her written statement and contest the suit on merits. VIII. Liberty is also reserved in favour of all parties to adduce evidence and also cross examine the other parties and their witnesses.

 IX. All rival contentions and all aspects of the matter are kept open and no opinion is expressed on the same.

X. Appellant and respondent Nos.1 and 2 undertake to appear before the trial Court without further notice on 18.12.2023.

Sd/-

JUDGE rv CT: BHK